

DUTY TO CALL WITNESSES – CASES

Appeals re Prosecutors' Decisions to Not Call Witnesses

Decision Justified

R v Palmer [2000] VSCA 236 – Court of Appeal

- Seward made statement on night of event in which he claimed 'I did not see any physical contact between the two girls': para 46
- Seward called by prosecution at committal, at defence request — gave detailed account of accused's actions, and of her motivation, at time of physical contact: paras 47 – 48
- Seward was the accused's boyfriend — his partisanship was 'manifest': paras 54 & 56
- Seward had prior convictions, including one for stating a false name and address: para 56
- Seward, listed as a prosecution witness — was subpoenaed and then made available for the defence to call: para 22
- Seward's "explanations" for stark conflict lacked credence...he stood in the shadow of perjury': para 56
- The prosecutor had studied Seward's police statement and deposition: para 39
- The prosecutor had a conference with the informant as to his conversation with Seward shortly after the event: para 39
- The prosecutor had sought advice and made himself familiar with the relevant authorities: para 39
- The prosecutor had at all times clearly explained his decision to the judge and gave his reasons: para 39

Tran v Magistrates' Court of Victoria [1998] 4 VR 294 — Supreme Court

- Zogheib had pleaded guilty to charges arising from the incident: p 12
- Zogheib was subpoenaed by the prosecution: p 12
- Zogheib threatened the prosecutor that he would 'fix you guys' and refused to say what evidence he would give: p 15
- Prosecutor told the court that Zogheib 'was not truthful, was uncooperative, and was unwilling to testify to the facts' p 15
- Zogheib not called to testify by prosecution: p 12

Decision Not Justified

R v Armstrong [1998] 4 VR 533 – Court of Appeal

- Cunningham initially refused to make a statement to police: p 534
- Defence counsel contacted prosecutor about a week before trial, informed him that Cunningham was now willing to make statement: p 534
- Prosecutor rejected defence request that Cunningham be interviewed: p 534
- The prosecutor refused 'point blank' to look at notes setting out the substance of Cunningham's version: p 538
- The prosecutor did not mention Cunningham's prior convictions, or his relationship with the accused, in explaining his decision: p 538

R v Shaw (1991) 57 A Crim R 425 – Court of Criminal Appeal

- Goyen made a statement to police, and was named as a prosecution witness at the committal — she was not named in the presentment as a prosecution witness: p 427
- The prosecutor had not seen or spoken to her before deciding she was '*an unreliable witness*' and in the defence '*camp*', and deciding not to call her: pp 428, 435 & 450
- The prosecutor could only point to '*inconsistent statements*' as the basis for his decision: p 429